

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD.

902 WRIT PETITION NO.3760 OF 2024

Sudhakar Gopinath Tak

..Petitioner

Versus

The State of Maharashtra

Through Collector Nanded and Others

..Respondents

.....

Shri. Ravindra B. Narvade Patil, Advocate for the Petitioner

Shri. R. D. Raut, AGP for the State.

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AND

WRIT PETITION NO. 3761 OF 2024

Sudhakar Gopinath Tak

..Petitioner

Versus

The State of Maharashtra

Through Collector Nanded and Others

..Respondents

.....

Shri. Ravindra B. Narvade Patil, Advocate for the Petitioner

Shri. N. D. Batule, AGP for the State.

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CORAM : NEERAJ P DHOTE, J.

Dated : APRIL 28, 2026

COMMON ORDER :-

. As the Petitioner in both the Petitions is common, the subject matter involved is identical, the orders impugned are passed by one and the same Authority under the provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (in short, 'Act of 2013'), and common submissions are advanced, both these Writ Petitions are decided by this common order.

2. The Petitioner submitted the Reference Applications under Section 64 of the Act of 2013 before the Deputy Collector, Land Acquisition, Percolation Tank Minor Irrigation Works No.2, Nanded. The said Reference Applications came to be rejected by the impugned Orders dated 19.03.2023 on the ground that, the Applicant failed to show as to whether the Reference Application was within limitation / as to on what date the Reference Application was filed. Since two different properties of the Petitioner came to be acquired for widening of the road, two different Reference Applications were filed.

3. It is submitted by the learned Advocate for the Petitioner that, no opportunity of personal hearing was accorded by Respondent No.2 and though *Mandal Adhikari* (Circle Officer) had put up the note before Respondent No.2 for keeping the matter for personal hearing after the written submissions were made, Respondent No.2 rejected the Applications without posting the Applications for personal hearing. It is further submitted that, the Petitioner had sought information under the Right to Information Act, which clearly shows the date on which the aforesaid Reference Applications were filed. It is further submitted that, the impugned orders are unsustainable in law and the same may be quashed and set aside and the matters be remanded to Respondent No.2 for fresh consideration.

4. It is submitted by the learned AGP that, reply Affidavits of Respondent No.2 are filed in the Writ Petitions. The Reference Applications were posted for hearing and necessary opportunity was given to the Petitioner. As the Petitioner failed to show as to on what date the Reference Applications were filed, no interference is called for in the impugned orders. It is further submitted that, the information sought by the Petitioner under the Right to Information Act was not placed on record and therefore, no fault can be found with the orders impugned. He submits that, the Petitions be dismissed.

5. Perusal of the impugned orders shows that, the Applications were kept for evidence on 14.11.2022, 28.11.2022, 06.12.2022, 19.12.2022 and 02.01.2023 and written submissions were filed on 02.01.2023. Respondent No.2 observed in the impugned orders that, there was no material to show as to on what date the Reference Applications were filed and therefore, it was not possible to examine whether the said Reference Applications were within limitation or not. The copies of the Roznamas of the Reference Applications are filed on record. The same shows that, on 20.11.2022, 25.11.2022 and 02.01.2023, Respondent No.2 – Deputy Collector was not available for hearing in the matter due to his other official work. This goes to show that, on two (2) dates mentioned in the impugned orders the Applications were kept for evidence, however Respondent No.2 – Deputy Collector himself was

not available. Exh.'D' is the copy of the office note dated 27.02.2023 of the *Mandal Adhikari* (Circle Officer), which is admittedly subsequent to the filing of the written submissions by the Petitioner on 02.01.2023. The said office note indicates that, after the written submissions were filed, the matter was reserved for final order, however, as the final order was not passed, the Circle Officer deemed it appropriate to give one date in the matter for hearing. However, thereafter, the impugned orders came to be passed.

6. From the material on record, it becomes clear that, no proper opportunity of hearing was granted to the Petitioner by Respondent No.2 before passing the impugned orders. This clearly shows violation of principles of natural justice. Thus, the proper course of action would be to remand back the matters to Respondent No.2 – Deputy Collector for fresh consideration in accordance with law by giving proper opportunity to the Petitioner. Hence, the following order.

ORDER

- (i) The Writ Petitions are allowed.
- (ii) The impugned orders dated 19.03.2023 in File No.2022/DC/LAQ/Sec.64/MIW-2/CR-2013/65 and in file No.2022/DC/LAQ/Sec.64/MIW-2/CR-2013/66 are quashed and set aside.
- (iii) The matters are remitted back to Respondent No.2 – Deputy

Collector for fresh consideration and decision, after giving opportunity of hearing to the Petitioner.

- (iv) The Petitioner shall appear before Respondent No.2 – Deputy Collector on **07.05.2026**.
- (v) Petitions stand disposed of.

(NEERAJ P. DHOTE, J.)